

25STCV04671 25STCV04671

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 2, 2026

CASE NUMBER

25STCV04671

MOTIONS

Motions to Compel Further Discovery Responses

MOVING PARTY

Defendant Thomas

Rogers

OPPOSING PARTIES

Plaintiff Mason Lewis

MOTIONS

Defendant Thomas

Rogers ("Defendant") moves to compel further responses from Plaintiff Mason Lewis ("Plaintiff") to (1) Demand for Inspection and Production of Documents, set one ("RPD") and Requests for Admissions, set one ("RFA"). Plaintiff opposes the motions.

ANALYSIS

If the propounding party deems responses to requests for production of documents or requests for admissions unsatisfactory, the propounding party may move to compel further responses. (Code Civ. Proc., §§ 2031.310, 2033.290.)

Plaintiff objected to the RPD and RFA on the basis he cannot respond pursuant to Penal Code section 851.92, which provides the procedure by which a person who suffered an arrest not resulting in a conviction may petition the Court to have the arrest and related records sealed. Under that statute, if the Court orders the arrest and related records sealed, anyone "who disseminates information relating to a sealed arrest . . . other than a criminal justice agency or the person whose arrest was sealed, is subject to a civil penalty" (Pen. Code, § 851.92, subd. (c).)

As Plaintiff points out, the Court in *People v. Lewis* (Super. Ct. L.A. County, No. SBA2TR02699-01 (case No. SBA2TR02699-01) ordered the underlying records unsealed. (September 2, 2025 Minute Order in case No. SBA2TR02699-01.) Plaintiff filed a petition for writ of supersedeas with respect to that September 2, 2025 order. In its order of May 11, 2026, the Appellate Division issued a stay of the September 2, 2025 order pending its ruling on the petition for writ of supersedeas. (*People v. Lewis* (Super. Ct. L.A. County, App. Div., No. 25APCM00161).)

There is some validity to Plaintiff's contention, even though he is the person whose arrest record and related documents were sealed, and he can obtain his own records from the Manhattan Beach Police Department, Plaintiff is prevented from disseminating such records while they remain under seal. In this vein, Penal Code section 851.92, subdivision (b)(5) expressly states, in relevant part, "[a]rrest records, police investigative reports, and court

records that are sealed under this section shall not be disclosed to any person or entity except the person whose arrest was sealed or a criminal justice agency.” (Emphasis added.) Therefore, until the time such materials which are responsive to the subject RFP are unsealed, Plaintiff does have cover for not disclosing them, even though he is the person whose arrest record and related documents were sealed.

Nonetheless, Plaintiff is otherwise obligated to produce responsive documents in his “possession, custody, or control.” (Code Civ. Proc., § 2031.220.) To the extent Plaintiff has responsive documents which are not part of the records under seal, those must be produced. In this regard, the Court notes, in his responses to date, Plaintiff uniformly asserts he does not possess or control such documents. (See, e.g., Declaration of Michelle R. Prescott in Support of Motion to Compel RPD, Exhibit J.)

Plaintiff also argues his responses would violate the protective order in *Lewis v. City of Manhattan Beach, et. al.* (C.D.Cal. 2024, No. 2:24-cv-03479-WLH-RAO) (case No. 2:24-cv-03479). The stipulated protective order in that case applies to “confidential information from the Manhattan Beach Police Department’s criminal investigation and records from Plaintiff Mason Lewis’s parallel criminal proceedings for which special protection from public disclosure and from use for any purpose other than prosecution of this action is warranted.” (Declaration of Alexis Galindo in Support of Plaintiff’s Opposition to Compel (RFA), Exhibit B, p. 2.)

It is unclear how Plaintiff’s responses to the subject RFA would implicate this protective order, as the RFA do not require Plaintiff to obtain confidential information from the Manhattan Beach Police Department, to which the protective order applies. In this regard, the subject RFA ask Plaintiff to admit facts of which Plaintiff necessarily has personal knowledge - - whether he was cited for a misdemeanor invasion of privacy offense and whether he was ordered to undergo sexual-addiction treatment. Therefore, Plaintiff must provide further code-compliant responses.

As for Plaintiff’s other arguments, the Court disagrees the subject requests are overbroad. Even if the relevance of the evidence Defendant seeks is attenuated, Defendant is entitled to responses. (See *Irvington-Moore, Inc. v. Superior*

Court (1993) 14 Cal. App. 4th 733, 739, fn. 4 [the Legislature has authorized "fishing expeditions," thus an objection on that ground is not valid to a proper discovery request].)

Similarly, Plaintiff fails to substantiate his objection the discovery is unduly burdensome. To support this contention, Plaintiff is required to present evidence of "the quantum of work required" with evidence which establish "the ultimate effect of the burden is incommensurate with the result sought." (West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County (1961) 56 Cal.2d 407, 417.) Plaintiff does not advance any such evidence.

Under the current circumstances of this case, the Court concludes an award of sanctions is unwarranted because such "circumstances [would] make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2031.310, subd. (g), 2033.290, subd. (d).)

CONCLUSION AND ORDER

Plaintiff is ordered to provide further responses to the RFA within 30 days of notice of this order.

Defendant is ordered to give notice of the Court's ruling and to file proof of service of same.